

UNITED STATES DISTRICT COURT

WESTERN DISTRICT OF LOUISIANA

ARMANDO OYOQUE, JR.	*	CIVIL ACTION NO: 6:22-cv-00243
VERSUS	*	JUDGE: DAVID C. JOSEPH
JOSEPH JOHN RYDER, AND	*	MAGISTRATE JUDGE:
DEPOSITORS INSURANCE	*	CAROL B. WHITEHURST
COMPANY		

PLAINTIFF'S AMENDED PETITION FOR DAMAGES

NOW INTO COURT, through undersigned counsel comes Plaintiff, **ARMANDO OYOQUE**, who amends and supplements Plaintiff's Petition for Damages as follows:

I.

By amending Paragraph 1 to read as follows:

"1.

Made Defendants herein are:

JOSEPH JOHN RYDER, a person of the full age of majority domiciled in Henry County, Illinois and *whose address is 112 Sherwood Drive, Geneseo, IL 61254*, and who, in accordance with La. R. S. 13:3474, may be served through the Louisiana Secretary of State, 8585 Archives Avenue, Baton Rouge, Louisiana;

DEPOSITORS INSURANCE COMPANY, a foreign insurance company *whose address is 1100 Locust Street, Des Moines, IA 50391*, who, in accordance with La. R.S. 13:3474, may be served through the Louisiana Secretary of State, 8585 Archives Avenue, Baton Rouge, Louisiana; and

NATIONWIDE MUTUAL INSURANCE COMPANY, a foreign insurance corporation, domiciled at One W. Nationwide Boulevard, Columbus, OH 43215, who, in accordance with La. R.S. 13:3474, may be served through the Louisiana Secretary of State, 8585 Archives Avenue, Baton Rouge, Louisiana.

II.

By amending paragraph 5 to read as follows:

“5.

That as a result of the aforesaid accident, Petitioner, **ARMANDO OYOQUE, JR.** sustained the following damages:

- A. Physical, mental and emotional pain, suffering and distress, past, present and future;
- B. Medical expenses, past, present and future;
- C. Loss of enjoyment of life, past, present and future;
- D. Disability;
- E. Loss of Five Hundred dollar (\$500.00) collision coverage deductible; and
- F. Loss of Earnings and/or Earning Capacity”.

III.

By adding an additional paragraph as follows:

“6A.

At all times pertinent herein, Defendant, **NATIONWIDE MUTUAL**

INSURANCE COMPANY, had in full force and effect a personal umbrella liability policy which provided excess liability coverage to the Defendant, **JOSEPH JOHN RYDER**, for the claims of Petitioner herein.

IV.

By adding an additional paragraph as follows:

“8.

Plaintiff, **ARMANDO OYOQUE**, re-alleges and reaffirms the allegations of his original Petition for Damages”.

V.

By amending the prayer to read as follows:

“**WHEREFORE**, Petitioner, **ARMANDO OYOQUE, JR.**, prays that Defendants, **JOSEPH JOHN RYDER, DEPOSITORS INSURANCE COMPANY** and **NATIONWIDE MUTUAL INSURANCE COMPANY**, be served with a copy of this Amended Petition for Damages, and after being duly cited to appear and answer hereto, and after the expiration of all legal delays and due proceedings had, that there be judgment rendered herein in favor of Petitioner, **ARMANDO OYQUE, JR.**, and against the Defendants, **JOSEPH JOHN RYDER, DEPOSITORS INSURANCE COMPANY**, and **NATIONWIDE MUTUAL INSURANCE COMPANY**, jointly and/or in solido for all sums as are reasonable in the premises, said judgment to bear legal interest from the date of

judicial demand until paid, and for all costs of these proceedings, and for all general and equitable relief.

RESPECTFULLY SUBMITTED,

MARK A. ACKAL & ASSOCIATES

BY: s/ Mark A. Ackal

Mark A. Ackal (#17434)
Post Office Box 52045
Lafayette, Louisiana 70505
Tel. (337) 237-5500
**Attorney for Plaintiff,
Armando Oyoque**

**PLEASE SERVE Plaintiff's Original and
Amended Petition for Damages on:**

Nationwide Mutual Insurance Company
Through its agent for service of process,
Louisiana Secretary of State
8585 Archives Avenue
Baton Rouge, Louisiana

**Please serve the Amended Petition
for Damages on:**

Scot Davis
Sandra Marquez
Law Office of Kimberly Anderson
3850 N. Causeway Boulevard, Ste. 1230
Metairie, LA 70002